

Sabir v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 22 July 2024 · 2024:AHC:116297-DB · WRIT - C No. - 21161 of 2024 · **Writ disposed of as withdrawn with liberty to assail the assessment.**

HEADNOTE

Writ against recovery founded on a 14.10.2018 assessment under Section 126 of the Electricity Act, 2003 read with Clause 6.8 of the Electricity Supply Code, 2006 was disposed of as withdrawn with liberty to challenge that order. Merits of the assessment and recovery were not examined.

FACTUAL SUMMARY

Sabir filed a writ against recovery of electricity dues by the Power Corporation. On the first listing none appeared for him; the Division Bench adjourned the matter as fresh so that Corporation counsel could obtain instructions. At the next hearing, the Electricity Department produced instructions that recovery was founded on an assessment dated 14 October 2018 under Section 126 of the Electricity Act, 2003 read with Clause 6.8 of the Electricity Supply Code, 2006. The petitioner then sought to withdraw the writ with liberty to challenge that assessment.

HOLDING-UNITS

INTERPLAY · EA2003::126

withdrawal of challenge to s.126/6.8 assessment

HOLDING

Counsel for the Electricity Department placed instructions that recovery was being made on an assessment dated 14.10.2018 passed under Section 126 of the Electricity Act, 2003 read with Clause 6.8 of the Electricity Supply Code, 2006. On the petitioner's prayer to withdraw with liberty to assail that order, the writ was disposed of as withdrawn with that liberty. Validity of the assessment and the recovery was not decided. ¶ 1-3

FLAG order names Electricity Supply Code, 2006 (catalog key UP-2005::6.8)

PRINCIPLE TAGS

opportunity-before-final-assessment Writ against recovery founded on a 14.10.2018 assessment under Section 126 of the Electricity Act, 2003 read with Clause 6.8 of the Electricity Supply Code, 2006 was disposed of as withdrawn with liberty to challenge that order. Merits of the assessment and recovery were not examined. ¶ 1-3

s126-procedural-strictness-notice-and-hearing Writ against recovery founded on a 14.10.2018 assessment under Section 126 of the Electricity Act, 2003 read with Clause 6.8 of the Electricity Supply Code, 2006 was disposed of as withdrawn with liberty to challenge that order. Merits of the assessment and recovery were not examined. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 14.10.2018 ASSESSMENT UNDER S.126 READ WITH CLAUSE 6.8, AND OF THE RECOVERY FOUNDED ON IT

writ withdrawn with liberty to assail the assessment; merits not examined ¶ 2-3